

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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TARAISHA SIMMONS AND SEDGE REGIS,

Plaintiffs

VERIFIED COMPLAINT

INDEX NO. 511436/22

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, AND POLICE OFFICER
MATTHEW C. ERDMAN, SHIELD #8314, 77TH PCT,
INDIVIDUALLY, AND AS A POLICE OFFICER, AND
POLICE OFFICER NICHOLAS S. VERDEROSA, SHIELD
#7644, 77TH PCT, INDIVIDUALLY, AND AS A POLICE
OFFICER, AND POLICE OFFICER DANIEL E. BRIGUGLIO,
SHIELD #19092, 77TH PCT, INDIVIDUALLY, AND AS A
POLICE OFFICER, AND P.O "JOHN DOES #1-#3,
IDENTITIES PRESENTLY UNKNOWN,

Defendants,

-----X
Plaintiffs, , by their attorneys, LAW OFFICE OF JEFFREY L. EMDIN, as and for a
Verified Complaint allege as follows:

PARTIES

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "CITY" was, and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.

2. Upon information and belief, at all times hereinafter mentioned the defendant, the City of New York, hereinafter referred to as "CITY", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including the named defendant officers and all the Police Officers therein.

3. That on December 8, 2021, P.O. Matthew C. Erdman, hereinafter referred to as “Erdman” was and still is a New York City Police Officer assigned to the 77th Pct. Upon information and belief Erdman’s Shield # is 8314.

4. That on December 8, 2021 at approximately 2:30 a.m. Erdman was on duty as a police officer, and at all times acted in the scope of his employment with the CITY and NYPD.

5. That on December 8, 2021, P.O. Nicholas S. Verderosa, hereinafter referred to as “Verderosa” was and still is a New York City Police Officer assigned to the 77th Pct. Upon information and belief Erdman’s Shield # is 7644.

6. That on December 8, 2021 at approximately 2:30 a.m. Verderosa was on duty as a police officer, and at all times acted in the scope of his employment with the CITY and NYPD.

7. That on December 8, 2021, P.O. Daniel Briguglio, hereinafter referred to as “Briguglio” was and still is a New York City Police Officer assigned to the 77th Pct. Upon information and belief Erdman’s Shield # is 19092.

8. That on December 8, 2021 at approximately 2:30 a.m. Briguglio was on duty as a police officer, and at all times acted in the scope of his employment with the CITY and NYPD.

9. Upon information and belief John Doe #1-#3, hereinafter referred to as the ‘Does’ named herein in a fictitious capacity as each of their identities is presently unknown, at all times hereinafter mentioned, and on the 8th day of December, 2021 were employed as a Police Officer(s) by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.

10. Hereinafter, “Erdman”, “Verderosa”, “Briguglio” and the “Does” were present at the date, time and location set forth below are collectively referred to as “the officers”.

11. The incident set forth below occurred on December 8, 2021 at approximately 2:30 a.m. at or near the vicinity of 957 Marcy Avenue, Brooklyn, NY, hereinafter referred to as “the location”.

12. At all relevant times hereinafter mentioned, plaintiff, Taraisha Simmons, hereinafter referred to as “Simmons”, was a resident of Kings County, residing at 487 Carleton Avenue, Brooklyn, New York.

13. At all relevant times hereinafter mentioned, plaintiff, Sedge Regis, hereinafter referred to as “Regis”, was a resident of Kings County, residing at 491 East 94th St., Brooklyn, New York.

14. Simmons and Green shall hereinafter collectively be referred to as the “plaintiffs”.

15. The “plaintiffs” have each individually filed Notices of Claim advising of the nature of their claims. Both Simmons and Regis have submitted to a 50 h hearing.

16. The defendants have not offered to settle the “plaintiffs’ claims.

17. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

18. On December 8, 2021, at approximately 2:30 a.m., the “plaintiffs” were at the “location”, waiting for an Uber ride.

19. The defendants approached Simmons and Regis. One officer inquired what Regis gave Simmons. Another officer, Briguglio, placed his hand on Simmons and restrained her.

20. Neither plaintiff has committed any crime.

21. The officers were advised that plaintiffs called for an Uber ride.

22. Officers grabbed Regis' arms and pushed him up against a wall.
23. Regis was pushed to his knees.
24. Regis' phone fell to the ground ringing. Regis attempted to get it, but an officer snatched it and threw it to the ground.
25. Regis was forced to the ground on his stomach and handcuffed.
26. Simmons asked Briguglio "what was going on". She identified Regis as her boyfriend.
27. Shaking with fear, Simmons attempted to see if Regis was ok, but she was pushed backwards and held. Simmons kept repeating "what did we do" but received no response.
28. The Does arrived on the scene and Simmons was placed in handcuffs and put in the back of the police car.
29. Simmons was in great pain from the handcuffs.
30. Simmons was falsely charged with disorderly conduct under summons #445021898.
31. No tickets or summons was issued to Regis, but he and his possessions were searched, and he was handcuffed and held without a warrant or probable cause.
32. Simmons' summons was dismissed on December 23, 2021.
33. Not one of the "officers" interceded during the unlawful conduct.
34. The officers never issued plaintiff, Regis, a stop and frisk card/report.
35. The search of the plaintiffs' persons and property were without the plaintiffs' consent.

36. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST AND SECOND CAUSES OF ACTION AGAINST
ALL DEFENDANTS FOR FALSE IMPRISONMENT ON BEHALF OF THE
PLAINTIFFS EACH WITH A CAUSE OF ACTION RESPECTIVELY ALLEGES:**

37. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "36" with the same force and effect as if more fully and at length set forth herein.

38. That on the 8th day of December, 2021, at the aforementioned time and location the defendants, and their agents, servants, and/or employees intentionally held, detained and/or imprisoned each plaintiff without any just cause or grounds therefore.

39. Each of said plaintiffs was held against his or her will under full force of arms.

40. Each plaintiff named herein was wholly innocent of any crime and did not contribute in any way or manner to his or her imprisonment by the defendants, their agents, servants and/or employees and was forced to submit to having their freedom restricted and said imprisonment entirely against his/her will.

41. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, and confine each of the plaintiffs movement and freedom; each of the plaintiffs was conscious of his confinement; each plaintiff did not consent to said confinement/imprisonment; and the confinement was not otherwise privileged.

42. That by reason of the aforesaid false imprisonment each plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said plaintiffs have been otherwise damaged.

43. That by reason of the aforesaid, the plaintiff, Simmons, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

44. That by reason of the aforesaid, the plaintiff, Regis, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD AND FOURTH CAUSES OF ACTION AGAINST
ALL DEFENDANTS FOR FALSE ARREST ON BEHALF OF THE PLAINTIFFS
EACH WITH A CAUSE OF ACTION RESPECTIVELY ALLEGES:**

45. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "44" with the same force and effect as if more fully and at length set forth herein.

46. That on the 8th day of December, 2021, at the aforementioned time and location, the defendants, and their agents, servants and/or employees intentionally held, detained and/or imprisoned each plaintiff without any just cause or grounds therefore, thereby effectively arresting the plaintiffs.

47. Each of said plaintiffs was arrested against his or her will under full force of arms.

48. Each plaintiff named herein was wholly innocent of any crime and did not contribute in any way or manner to his or her arrest by the defendants, their agents, servants and/or employees and was forced to submit to having their freedom restricted and said arrest and imprisonment entirely against his/her will.

49. That the defendants, their agents, servants and/or employees, as set forth above, intended to arrest each plaintiff; each plaintiff was conscious of his or her arrest and that he/she was not free to leave; each plaintiff did not consent to said arrest and subsequent confinement/imprisonment; and the arrest was not otherwise privileged.

50. That by reason of the aforesaid false arrest each plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said plaintiffs have been otherwise damaged.

51. That by reason of the aforesaid, the plaintiff, Simmons, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

52. That by reason of the aforesaid, the plaintiff, Regis has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH AND SIXTH CAUSE OF ACTION ON BEHALF OF EACH
PLAINTIFFS AGAINST ALL NAMED DEFENDANTS FOR ASSAULT AND
BATTERY, EACH PLAINTIFF ALLEGES:**

53. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "52" with the same force and effect as if more fully and at length set forth herein.

54. That commencing on the 8th day of December, 2021, at the aforementioned time at "the location", the defendant "officers" and upon information and belief other officers presently unknown, while acting in the scope of their employment as police officers and as agents for the defendant the "CITY" and "NYPD", without just cause or provocation and without having right or authority to do so made physical contact with the plaintiffs and searched their persons.

55. Each plaintiff was searched by the defendants..

56. Regis was subject to excessive force in that he was grabbed with force, taken to his knees, and to the ground in a violent manner.

57. The officers purposely grabbed, held, restrained, arrested and tightened Simmons' handcuff causing her extreme pain and discomfort.

58. Upon information and belief, the officers had absolutely no reason or just cause to assault and batter the plaintiffs.

59. The assault and battery and physical contact was not privileged.

60. The assault and battery took place while the plaintiffs had committed no crime, violation or infraction.

61. That the defendants, their agents, servants and/or employees, including unknown police officers, and the arresting officers, acting as agents on behalf of the defendant "CITY" and/or "NYPD", within the scope of their employment, intentionally, willfully, and/or assaulted and battered each of the named plaintiffs, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact and/or fear of imminent harmful contact to "the plaintiffs".

62. That said acts caused apprehension of such offensive contact to each of "the plaintiffs", and the defendants caused such batter in and about his or her body and limbs.

63. That by reason of the aforesaid intentional assault and battery, each plaintiff suffered offensive contact and/or physical and/or psychological injuries to his or her body and/or mind, and that each was otherwise damaged.

64. That by reason of the aforesaid, the plaintiff, Simmons, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

65. That by reason of the aforesaid, the plaintiff, Regis, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS FOR A SEVENTH AND EIGHTH CAUSE OF ACTION AGAINST
ALL NAMED DEFENDANT OFFICERS FOR 42 U.S.C. 1983 AND
1988 VIOLATIONS EACH OF THE PLAINTIFFS ALLEGE:**

66. "The plaintiffs" repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "65" with the same force and effect as if more fully and at length set forth herein.

67. By reason of the aforesaid acts, the defendant "officers" individually and collectively have violated each plaintiff's right: to be free of illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution; to be free from use of excessive use of force thereby giving rise to a cause of action pursuant to 42 USC 1983.

68. The conduct and actions of the named defendant police officers, acting under color of law, in seizing each plaintiff, and upon information and belief in searching each plaintiff's person and property; in assaulting each plaintiff, in threatening the plaintiffs, and in falsely imprisoning, and falsely arresting and/or prosecuting, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of each of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq.,

69. Each of the defendant police officers actions, individually and collectively deprived each of the Plaintiffs of his or her rights including, but not limited to the Fourth and Fourteenth Amendments guaranteeing protection against unlawful seizure of their persons, and Title 42 U.S.C. 1983 et seq.

70. That by reason of the aforesaid, Simmons has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs,

attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other belief as to the court may seem just and proper.

71. That by reason of the aforesaid, Regis has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A NINTH AND TENTH CAUSE OF ACTION
FOR NEGLIGENCE AGAINST THE "CITY" AND "NYPD"
EACH OF THE PLAINTIFFS ALLEGE

72. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "71" with the same force and effect as if more fully and at length set forth herein.

73. That the CITY and/or NYPD were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retraining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the defendants named herein.

74. That as a result of their negligence, the above named plaintiffs were falsely imprisoned, illegally seized, illegally searched, falsely arrested, assaulted, battered and had their constitutional and civil rights violated.

75. That by reason of the aforesaid, the plaintiff, Simmons has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

76. That by reason of the aforesaid, the plaintiff, Regis, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION SIMMONS' ALLEGES:**

77. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "76" with the same force and effect as if more fully and at length set forth herein.

78. The defendants initiated a criminal prosecution of plaintiff Simmons alleging that she committed a crime they knew she did not commit.

79. Upon information and belief, the defendants submitted false documents, and provided false statements to prosecute Simmons for a crime they knew she did not commit, and acted with an intent to cover-up their own misconduct.

80. The defendants acted with malice against Simmons.

81. Simmons was innocent of the crimes alleged.

82. Simmons was made to submit to a criminal prosecution.

83. All criminal charges were dismissed on December 23, 2021.

84. That by reason of the aforesaid, the plaintiff Simmons has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the eleventh causes of action, plus attorney's fees, costs, disbursements and punitive damages (on the seventh and eighth causes of action), and such further relief as to the court seems just and proper.

DATED: New York, New York
April 18, 2022



Jeffrey L. Emdin, Esq.
Law Office of Jeffrey L. Emdin.
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New York, New York 10018
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ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

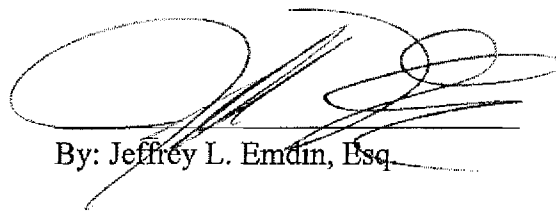
That I am an attorney associated with the law firm of Jeffrey L. Emdin, Esq., the attorneys of record for the Plaintiffs in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
April 18, 2022



By: Jeffrey L. Emdin, Esq.